

strated in the decisions on the right to counsel in state felony trials. See *Pickelsimer v. Wainwright*, 375 U. S. 2 (1963); *Kitchens v. Smith*, 401 U. S. 847 (1971); *Burgett v. Texas*, 389 U. S. 109 (1967); *United States v. Tucker*, 404 U. S. 443 (1972).

Since *Furman* is fully retroactive petitioner's case should be simple to resolve. The terms of Art. 118 of the UCMJ provide that a person convicted of premeditated murder "shall suffer death or imprisonment for life as a court-martial may direct." A death sentence was imposed by the court-martial and affirmed by the Board of Review and the United States Court of Military Appeals, 7 U. S. C. M. A. 419, 22 C. M. R. 209 (1956). The death sentence so imposed was declared unconstitutional by *Furman* and is therefore null and void as a matter of law. The only legal alternative—simple life imprisonment—must be substituted. Concomitantly, the adverse consequence of the death sentence—the no-parole condition of petitioner's 1960 commutation—must also be voided, as it exceeds the lawful alternative punishment that should have been imposed. Petitioner should now be subject to treatment as a person sentenced to life imprisonment on the date of his original sentence and eligible for parole.⁵

⁵ Nothing in *Furman* suggests that it is inapplicable to the military. The *per curiam* carves out no exceptions to the prohibition against discretionary death sentences. The opinions of the five-member majority recognize no basis for excluding the members of the Armed Forces from protection against this form of punishment. Even the list of four capital punishment statutes not affected by the Court's decision, provided by my Brother STEWART, does not include the federal military statutes. 408 U. S. 238, 307 (1972). Even more persuasive is the language of my Brother POWELL in dissent which states that "numerous provisions of . . . the Uniform Code of Military Justice are also voided." *Id.*, at 417-418.

Beyond the language of *Furman* the Court has made clear in *Trop v. Dulles*, 356 U. S. 86 (1958), that the Eighth Amendment is appli-